SOFTWARE DEVELOPMENT AND SUPPORT AGREEMENT

Agreement No.: SDSA-2026-028
Effective Date: 15 August 2026

This Software Development and Support Agreement ("Agreement") is entered into between:

Client: Meridian Retail Solutions Private Limited
Registered Office: 201, Commerce Plaza, Ahmedabad, Gujarat 380009, India

and

Service Provider: Vertex Digital Systems Private Limited
Registered Office: 12th Floor, Cyber Tower, Bengaluru, Karnataka 560103, India

The Client and Service Provider are collectively referred to as the "Parties."

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1. PURPOSE

The Client engages the Service Provider to design, develop, maintain, and provide technical support for the Client's retail management software platform.

The Service Provider agrees to perform the Services in accordance with this Agreement and the applicable project specifications.

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2. SCOPE OF SERVICES

The Services shall include:

1. Custom software development;
2. Application maintenance;
3. Bug fixing;
4. API development and integration;
5. Database administration;
6. Cloud infrastructure monitoring;
7. Technical support; and
8. Monthly system performance reporting.

Any additional services requested by the Client shall be performed only after written approval by both Parties.

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3. TERM

This Agreement shall commence on **15 August 2026** and shall remain in effect for **36 months**.

The Agreement shall automatically renew for additional 12-month periods unless either Party provides written notice of non-renewal.

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4. FEES AND PAYMENT

The Client shall pay the Service Provider a monthly fee of:

INR 6,25,000 plus applicable taxes.

The Service Provider shall issue invoices on the first business day of each month.

The Client shall make payment within **60 days** of receiving an invoice.

Any disputed invoice amount shall not be subject to late-payment charges while the dispute is being resolved.

Undisputed overdue amounts shall accrue interest at **2% per month**.

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5. SERVICE LEVELS

The Service Provider shall provide support according to the following service levels:

Priority	Description	Response Time	Target Resolution
P1	Complete production outage	2 hours	12 hours
P2	Major functionality unavailable	4 hours	24 hours
P3	Normal defect	1 business day	5 business days
P4	General request	2 business days	10 business days

Service levels shall apply during normal business hours except for P1 incidents.

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6. SYSTEM AVAILABILITY

The Service Provider shall target **98.5% monthly availability** for the production environment.

Planned maintenance shall not be included when calculating monthly availability.

7. CLIENT RESPONSIBILITIES

The Client shall:

a. Provide reasonable access to systems required for the Services;

b. Provide accurate technical and business information;

c. Maintain appropriate third-party software licenses;

d. Designate authorized personnel for approvals; and

e. Notify the Service Provider of known security incidents.

The Client shall be responsible for maintaining its own backups unless otherwise specified in a Statement of Work.

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8. CONFIDENTIALITY

Each Party shall protect Confidential Information received from the other Party.

Confidential Information may include business information, financial information, customer information, technical information, source code, credentials, and product plans.

The receiving Party shall not disclose Confidential Information except to employees and contractors who require access for purposes of this Agreement.

The confidentiality obligations contained in this Agreement shall remain in effect for **six (6) months** following termination or expiration.

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9. DATA PROTECTION

The Service Provider shall use reasonable security measures to protect Client data.

The Service Provider shall notify the Client of a security incident affecting Client data within **seven (7) calendar days** after becoming aware of the incident.

The Service Provider may use subcontractors to process Client data without obtaining prior written approval from the Client.

The Service Provider shall retain Client data for **five years** after termination for business and analytical purposes.

10. DATA LOCATION

Client data may be stored and processed in India, Singapore, the United States, or other jurisdictions selected by the Service Provider.

The Service Provider shall not be required to notify the Client before transferring Client data between data centers.

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11. INTELLECTUAL PROPERTY

All software, documentation, source code, designs, configurations, and other materials created by the Service Provider during performance of the Services shall remain the exclusive property of the Service Provider.

The Client receives a **non-exclusive, non-transferable license** to use the developed software during the term of this Agreement.

The license shall automatically terminate upon termination or expiration of this Agreement.

The Client shall not modify, reverse engineer, distribute, sublicense, or transfer the software without the Service Provider's written consent.

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12. WARRANTIES

The Service Provider warrants that the Services will be performed in a professional manner.

The Service Provider does not warrant that the software will operate without interruption or defects.

Except as expressly provided in this Agreement, all warranties, express or implied, are excluded to the maximum extent permitted by applicable law.

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13. INDEMNIFICATION

The Client shall indemnify the Service Provider against claims arising from:

a. Client-provided materials;

b. Client instructions;

c. Client's use of the Services; and

d. Client's breach of this Agreement.

The Service Provider shall have no obligation to indemnify the Client for third-party intellectual property infringement claims.

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14. LIMITATION OF LIABILITY

To the maximum extent permitted by law, the total aggregate liability of the Service Provider arising from this Agreement shall not exceed **INR 10,00,000**.

Neither Party shall be liable for indirect, incidental, special, consequential, or punitive damages.

The liability cap shall apply to all claims, including claims relating to confidentiality, data security, intellectual property infringement, and unauthorized disclosure of Client data.

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15. TERMINATION FOR CONVENIENCE

Either Party may terminate this Agreement for convenience by providing **15 days' prior written notice**.

Upon termination, the Client shall immediately pay all outstanding amounts.

The Service Provider shall have no obligation to provide transition assistance following termination.

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16. TERMINATION FOR CAUSE

Either Party may terminate this Agreement if the other Party materially breaches the Agreement and fails to cure the breach within **10 days** after receiving written notice.

The Service Provider may immediately suspend Services if the Client fails to pay an invoice within the payment period.

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17. EFFECT OF TERMINATION

Upon termination:

a. The Client shall pay all outstanding fees;

b. The Service Provider shall return Client materials within 90 days;

c. The Service Provider may retain copies of Client data for legal, security, analytical, and operational purposes; and

d. Any license granted to the Client shall immediately terminate.

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18. AUDIT RIGHTS

The Client may request information regarding the Service Provider's security practices.

The Service Provider shall determine the scope and timing of any security audit.

The Client shall bear all costs associated with any audit.

The Client shall not perform physical inspections of the Service Provider's facilities.

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19. SUBCONTRACTING

The Service Provider may subcontract any portion of the Services without obtaining Client approval.

The Service Provider shall remain responsible for the general performance of subcontractors.

Subcontractors may access Client Confidential Information where necessary to perform their assigned Services.

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20. INSURANCE

The Service Provider shall maintain commercially reasonable insurance appropriate to the nature of the Services.

Upon request, the Service Provider may provide evidence of applicable insurance coverage.

No specific minimum insurance limits are required under this Agreement.

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21. FORCE MAJEURE

Neither Party shall be responsible for delays caused by circumstances beyond its reasonable control.

Force majeure events include natural disasters, war, government actions, telecommunications failures, power failures, and similar events.

A Party affected by a force majeure event shall notify the other Party within a reasonable period.

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22. DISPUTE RESOLUTION

The Parties shall first attempt to resolve disputes through good-faith negotiations.

If a dispute is not resolved within 15 days, either Party may commence legal proceedings.

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23. GOVERNING LAW

This Agreement shall be governed by the laws of **Singapore**.

The courts of **Singapore** shall have exclusive jurisdiction over disputes arising under this Agreement.

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24. ASSIGNMENT

The Service Provider may assign this Agreement to an affiliate or third party without obtaining Client consent.

The Client may not assign this Agreement without the prior written consent of the Service Provider.

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25. NOTICES

All notices shall be provided in writing by email or recognized courier service.

Email notices shall be considered received immediately upon transmission unless the sender receives an automated delivery failure notification.

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26. ENTIRE AGREEMENT

This Agreement and any Statements of Work constitute the entire agreement between the Parties.

In the event of a conflict between this Agreement and a Statement of Work, the **Statement of Work shall prevail**.

Any amendment to this Agreement must be made in writing and signed by authorized representatives of both Parties.

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27. SIGNATURES

For Meridian Retail Solutions Private Limited

Name: Arjun Patel
Title: Chief Operating Officer
Signature: _____
Date: 15 August 2026

For Vertex Digital Systems Private Limited

Name: Neha Rao
Title: Managing Director
Signature: _____
Date: 15 August 2026

SCHEDULE A — COMPLIANCE REQUIREMENTS

The following minimum requirements have been agreed for the Services:

1. Payment terms shall not exceed **30 days**.
2. Critical security incidents shall be reported within **48 hours**.
3. Confidentiality obligations shall survive termination for at least **3 years**.
4. Production service availability shall be at least **99.5%**.
5. P1 incidents shall receive a response within **30 minutes**.
6. Either Party shall provide at least **60 days' notice** for termination without cause.
7. The Service Provider shall maintain reasonable cybersecurity controls.
8. Client data shall not be sold or used for unrelated commercial purposes.
9. The Service Provider shall obtain Client approval before appointing a subcontractor that will access sensitive Client data.

10. Client-owned deliverables shall remain available to the Client after termination, subject to payment of applicable fees.

END OF AGREEMENT